



CHAPTER xcii.

An Act to confirm certain Provisional Orders of the Local Government Board relating to Cardiff Coventry Lytham Sheffield and the Rothwell Joint Cemetery District. A.D. 1915.

[29th July 1915.]

WHEREAS the Local Government Board have made the Provisional Orders set forth in the schedule hereto under the provisions of the Public Health Act 1875:

38 & 39 Vict.
c. 55.

And whereas it is requisite that the said Orders should be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Orders set out in the schedule hereto shall be and the same are hereby confirmed and all the provisions thereof shall have full validity and force. Orders in schedule confirmed.

2. Notwithstanding anything in this Act or in the Cardiff Order 1915 contained the following provisions shall have effect for the protection of the Marquis of Bute his sequels in estate and assigns all included in the expression "the Marquis" when herein-after used except so far as the Marquis and the lord mayor aldermen and citizens of the city of Cardiff (in this section referred to as "the Corporation") may otherwise agree:— Special provisions for protection of Marquis of Bute.

(1) In the event of the Corporation exercising the powers conferred by the said Order and this Act for the acquisition of any lands lying on the north side of Duke Street and the west side of Kingsway they shall acquire all estates and interests of persons other than

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the Marquis in the whole of the lands so situate shown on the deposited plans but shall not acquire any estate or interest of the Marquis in any such lands to the north or west of the line of widening shown on the said plans :

- (2) The Corporation shall remove all buildings as hereafter mentioned and convey to the Marquis the whole of the land to be acquired by them as aforesaid to the north and west of the said intended line of widening and shall also pay to the Marquis the sum of ten thousand pounds the whole of which sum the Marquis shall expend in the erection of walls of similar character to the existing walls bounding the property of the Marquis in Castle Street and Kingsway immediately adjoining the land shown on the deposited plans to inclose the land which will after the said widening belong to him to the north or west of the said line of widening or in restoring rebuilding or improving the outer walls of Cardiff Castle (including any ancient works which may exist or have existed having the character of walls or bastions though extending beyond the existing walls) or in the laying out or improvement of the land between the said line of widening and the lands occupied with the said castle or some one or more of such objects :
- (3) In consideration of the said conveyance and payment by the Corporation the Marquis shall convey to the Corporation free of any other consideration all the lands of the Marquis lying between Duke Street and Kingsway and the said line of widening which said lands shall be used by the Corporation for the said widening and be dedicated to the public use as public highways :
- (4) Subject as herein mentioned the Corporation shall remove all buildings from the whole of the lands shown on the deposited plans lying on the north side of Duke Street and the west side of Kingsway and within the limit of land to be purchased as shown on those plans and all the materials of such buildings shall belong to the Corporation and be retained by them :

- (5) In case any ancient walls or foundations which in the opinion of the Marquis shall be of archæological or antiquarian interest shall be found upon any land to the north or west of the said intended line of widening the same shall not be removed without the consent of the Marquis: A.D. 1915.
- (6) Subject as herein mentioned no erection or building shall at any time be set up or be permitted to remain after the intended widening of Duke Street shall have taken place on any part of the lands within the limit of land to be purchased shown on the deposited plans adjoining Duke Street (on the north side) otherwise than by the consent of the Corporation and the Marquis except that the consent of the Corporation shall not be required for the erection of such buildings as the Marquis may desire to erect in connexion with the walls of Cardiff Castle or a new entrance thereto:
- (7) The matters herein-before mentioned shall be carried out as soon as reasonably may be after any notice to treat shall be given by the Corporation for the acquisition of any of the lands aforesaid:
- (8) The Corporation shall not without the consent of the Marquis acquire any part of the land adjoining Castle Street being No. 24 on the deposited plans.

3. This Act may be cited as the *Local Government Board's* Short title.
Provisional Orders Confirmation (No. 6) Act 1915.

A.D. 1915.

S C H E D U L E.

CITY OF CARDIFF.

*Cardiff
Order.*

*Provisional Order to enable the Urban Sanitary Authority
for the City of Cardiff to put in force the Compulsory
Clauses of the Lands Clauses Acts.*

To the Lord Mayor Aldermen and Citizens of the City of Cardiff;—
And to all others whom it may concern.

WHEREAS the Lord Mayor Aldermen and Citizens of the City of Cardiff acting by the Council as the Urban Sanitary Authority for that City (herein-after referred to as "the Corporation") require to purchase and take the lands described in the schedule hereto for the purpose of widening opening enlarging or otherwise improving the streets known as Duke Street Castle Street High Street and Kingsway:

38 & 39 Vict.
c. 55. Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 176 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the following provisions shall have effect that is to say:—

*Compulsory
powers of
purchase.*

Art. I. The Corporation shall be empowered to put in force with reference to the lands described in the schedule hereto and for the purpose aforesaid the powers of the Lands Clauses Acts with respect to the purchase and taking of lands otherwise than by agreement or any of them:

Provided that the prescribed period for the compulsory purchase of the lands described in the schedule hereto shall for the purposes of Section 123 of the Lands Clauses Consolidation Act 1845 be four years from the date of the Act of Parliament confirming this Order.

Short title.

Art. II. This Order may be cited as the Cardiff Order 1915,

[5 & 6 GEO. 5.] *Local Government Board's* [Ch. xcii.]
Provisional Orders Confirmation (No. 6) Act, 1915.

The SCHEDULE above referred to.

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Cardiff
Order.

City of CARDIFF.

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
1	Land portion of boundary wall and portions of buildings.	The Most Honourable John Marquis of Bute and Earl of Dumfries Trustees Lord Edmund Bernard Talbot and Archibald Robert Crawford Pitman.	- - -	The Most Honourable John Marquis of Bute and Earl of Dumfries.
2	Yard telephone stay and wires.	The Most Honourable John Marquis of Bute and Earl of Dumfries Trustees Lord Edmund Bernard Talbot and Archibald Robert Crawford Pitman the Postmaster-General.	- - -	The Most Honourable John Marquis of Bute and Earl of Dumfries the Postmaster-General.
3	Dwelling - house yard walls and outbuildings.	The Most Honourable John Marquis of Bute and Earl of Dumfries Trustees Lord Edmund Bernard Talbot and Archibald Robert Crawford Pitman.	- - -	Phillip Herbert.
4	Office and show-room telephone wires and bracket.	The Most Honourable John Marquis of Bute and Earl of Dumfries Trustees Lord Edmund Bernard Talbot and Archibald Robert Crawford Pitman the Postmaster-General.	- - -	Sydney Francis Bowling (Trading as B. Ward and Company) the Postmaster-General.
5	Part of Law Courts Hotel.	The Most Honourable John Marquis of Bute and Earl of Dumfries Trustees Lord Edmund Bernard Talbot and Archibald Robert Crawford Pitman.	- - -	R. P. Culley and Company Limited Sidney Thomas.
6	Boundary wall -	Ditto - -	- - -	Ditto.

[Ch. xcii.] *Local Government Board's* [5 & 6 GEO. 5.]
Provisional Orders Confirmation (No. 6) Act, 1915.

A.D. 1915.

*Cardiff
Order.*

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
7	Part of Law Courts Hotel dwelling-house yard and out- buildings tele- phone wires and brackets.	R. P. Culley and Company Limited the Postmaster- General.	- - -	R. P. Culley and Company Limited Sidney Thomas the Postmaster- General.
8	Shop workrooms and storerooms.	The Most Honour- able John Marquis of Bute and Earl of Dumfries Trus- tees Lord Edmund Bernard Talbot and Archibald Robert Crawford Pitman.	- - -	John James Wood- ford.
9	Shop workrooms and storerooms telephone wires and bracket.	The Most Honour- able John Marquis of Bute and Earl of Dumfries Trus- tees Lord Edmund Bernard Talbot and Archibald Robert Crawford Pitman the Post- master-General.	- - -	Charles Marmont the Postmaster- General.
10	Ditto - -	Ditto - -	- - -	Ditto.
11	Shop printing works yard and outbuildings telephone wires and bracket.	Ditto - -	- - -	William Lewis William Lewis (Printers) Limited the Postmaster- General.
12	Shop and sale- room telephone wires and brac- ket.	Ditto - -	- - -	Saxone Shoe Com- pany Limited William Howard Fowler (trading as Fowler and Son) the Postmaster- General.
13	Shop saleroom and offices.	Charles Theodore Halswell Kemeys Tynte Trustees Elizabeth Kemeys Tynte Clement Upperton Gerald Montague August- us Ellis the Post- master-General.	Ivor Vachell Lesser Plotzker George James Maddox George Frederick Ham- ilton Kibbler.	Lesser Plotzker (trading as the Irish Linen Asso- ciation) George James Maddox George Frederick Hamilton Kibbler (trading as Mad- dox and Son) Ken- neth Ring Watson Alfred Maurice Bailey Davies Middleton and Davies Limited George Meek (tra- ding as Meek and Company) William Henry Jenkin the Postmaster- General.

[5 & 6 GEO. 5.] *Local Government Board's* [Ch. xcii.]
Provisional Orders Confirmation (No. 6) Act, 1915.

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
14	Part of castle wall.	The Most Honourable John Marquis of Bute and Earl of Dumfries Trustees Lord Edmund Bernard Talbot and Archibald Robert Crawford Pitman the Trustees of the Estate of William Vachell deceased namely Alfred Redwood Vachell Ada Vachell and Henry Fedden Alfred Redwood Vachell Ada Vachell the Postmaster-General.	The Duke Street Cardiff Company Limited.	The Most Honourable John Marquis of Bute and Earl of Dumfries William Henry Jenkin.
15	Shop salerooms and offices telephone wires and brackets.	The Trustees of the estate of Hester Vachell deceased namely Charles Francis Vachell Beverley Robinson Vachell and Thomas Wallace Margaret Jane Wallace Emily Harriett Wallace Rebecca Vachell Charles Francis Vachell the Postmaster-General.	George James Maddox George Frederick Hamilton Kibbler Walter Scott and Walter Gilbert Scott John Love McBride.	George James Maddox George Frederick Hamilton Kibbler (trading as Maddox and Son) Walter Scott and Walter Gilbert Scott (practising as Morgan Scott and Scott) John Love McBride (trading as Stanhope and Company) the Postmaster-General.
16	Shop workrooms offices outbuildings and yard strong room telephone wires and bracket.	The Trustees of the estate of William Vachell deceased (as before) Alfred Redwood Vachell Ada Vachell the Postmaster-General.	The Duke Street Cardiff Company Limited Reginald Garnet Beardall William Henry Jenkin William Lougher Yorath and Frederick Noah Jones Alexander Frederick Bland.	Reginald Garnet Beardall (trading as Madame Henriette & Cie) William Henry Jenkin William Lougher Yorath and Frederick Noah Jones Alexander Frederick Bland The Theosophical Society in England and Wales Cardiff Lodge Basil Philip Howell and Bernhard William Freeman Honorary Secretary and Trustee respectively Charles David Bates the Duke Street Cardiff Company Limited the Postmaster-General.

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Cardiff
Order.

[Ch. xcii.] *Local Government Board's* [5 & 6 GEO. 5.]
Provisional Orders Confirmation (No. 6) Act, 1915.

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Cardiff
Order.

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
17	Passage way yard and staircase and strong room telephone wires and bracket.	The Trustees of the estate of William Vachell deceased (as before) Alfred Redwood Vachell Ada Vachell the Postmaster-General.	The Duke Street Cardiff Company Limited Reginald Garnet Beardall William Henry Jenkin William Lougher Yorath and Frederick Noah Jones Alexander Frederick Bland E. Roberts Limited.	Reginald Garnet Beardall (trading as Madame Henriette & Cie) William Henry Jenkin William Lougher Yorath and Frederick Noah Jones Alexander Frederick Bland E. Roberts Limited Charles David Bates The Theosophical Society in England and Wales Cardiff Lodge Basil Philip Howell and Bernhard William Freeman Honorary Secretary and Trustee respectively the Duke Street Cardiff Company Limited the Postmaster-General.
18	Workrooms and outbuildings telephone wires and bracket.	The Trustees of the estate of William Vachell deceased (as before) Alfred Redwood Vachell Ada Vachell the Postmaster - General the Executors and Trustees of the Will of John Williams Vachell deceased namely Ivor Vachell Herbert Redwood Vachell and Theodore Isaac Vachell the Executors and Trustees of the Will of Charles Tanfield Vachell deceased namely Winifred Vachell Herbert Redwood Vachell Theodore Isaac Vachell and Eustace Tanfield Vachell Ivor Vachell Herbert Redwood Vachell Theodore Isaac Vachell Fanny Elizabeth Vachell Edith Augusta Vachell the Postmaster-General.	E. Roberts Limited the Duke Street Cardiff Company Limited.	E. Roberts Limited the Postmaster-General.

[5 & 6 GEO. 5.] *Local Government Board's* [Ch. xcii.]
Provisional Orders Confirmation (No. 6) Act, 1915.

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.	A.D. 1915. Cardiff Order.
19	Part of castle wall.	The Most Honourable John Marquis of Bute and Earl of Dumfries Trustees Lord Edmund Bernard Talbot and Archibald Robert Crawford Pitman. The Trustees of the estate of William Vachell deceased (as before) Alfred Redwood Vachell Ada Vachell the Postmaster-General.	- - - The Duke Street Cardiff Company Limited.	The Most Honourable John Marquis of Bute and Earl of Dumfries E. Roberts Limited. Alfred Redwood Vachell Ada Vachell and Henry Feddon.	
20	Shop workrooms strong room and offices telephone wires and bracket.	The Trustees of the estate of William Vachell deceased (as before) Alfred Redwood Vachell Ada Vachell the Postmaster-General.	The Duke Street Cardiff Company Limited Reginald Garnet Beardall William Lougher Yorath and Frederick Noah Jones Alexander Frederick Bland.	Reginald Garnet Beardall (trading as Madame Henriette & Cie) William Lougher Yorath and Frederick Noah Jones Alexander Frederick Bland Charles David Bates the Duke Street Cardiff Company Limited the Postmaster General.	
21	Shop storerooms yard and out-buildings telephone wires and brackets.	The Most Honourable John Marquis of Bute and Earl of Dumfries Trustees Lord Edmund Bernard Talbot and Archibald Robert Crawford Pitman the Postmaster-General.	- - -	The Executors of the Will of William Thomas Hicks deceased namely Charles Stuart Goodfellow Annie Hicks and John Edward Evans the Postmaster-General.	
22	Shop workrooms yard and out-buildings telephone wires and bracket.	The Executors and Trustees of the Will of John Williams Vachell deceased (as before) the Executors and Trustees of the Will of Charles Tanfield Vachell deceased (as before) Ivor Vachell Herbert Redwood Vachell Theodore Isaac Vachell Fanny Elizabeth Vachell Edith Augusta Vachell the Postmaster General.	Joseph Spiridion	Joseph Spiridion (trading as Spiridion and Son) the Postmaster-General.	

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Order.

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
23	Shop and work-rooms tele-phone wires and bracket.	The Executors and Trustees of the Will of John Williams Vachell deceased (as before) the Executors and Trustees of the Will of Charles Tanfield Vachell deceased (as before) Herbert Redwood Vachell Theodore Isaac Vachell Fanny Elizabeth Vachell Edith Augusta Vachell Ivor Vachell the Postmaster-General.	E. Roberts Limited.	E. Roberts Limited the Postmaster-General.
24	Land and boundary wall.	The Most Honourable John Marquis of Bute and Earl of Dumfries Trustees Lord Edmund Bernard Talbot and Archibald Robert Crawford Pitman.	- - -	The Most Honourable John Marquis of Bute and Earl of Dumfries.
25	Shop and store-rooms tele-phone wires and bracket.	Norah Casilda Bowring the Postmaster-General.	Daniel Morgan -	Daniel Morgan (trading as D. Morgan and Company) the Postmaster-General.
26	Shop offices and workrooms tele-phone wires and brackets.	Charles Augustus Roberts Amos Parr John Henry Bowden James Robert Roberts John William Roberts Annie Maria Edwards Arthur George Roberts William Harris Charles Alfred Roberts Mary Elizabeth Richards William Henry Roberts Matilda Agnes Roberts William John Philpotts Alfred James Philpotts Charlotte Emma Binnie Maud Matilda Gwatkin Ellen Florence Scrivener Matilda Jane Harris the Postmaster-General.	Frank Henry Cook and Ernest Edward Cook Robert Lane.	Frank Henry Cook and Ernest Edward Cook (trading as Thomas Cook and Son) Robert Lane the Postmaster-General.

[Ch. xcii.] *Local Government Board's* [5 & 6 GEO. 5.]
Provisional Orders Confirmation (No. 6) Act, 1915.

A.D. 1915.

The SCHEDULE above referred to.

*Coventry
Order.*

City of COVENTRY.

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
1	House garden outbuildings greenhouse and fowl run.	Joseph Masters. Thomas	- - -	Thomas Reesby.
2	House garden stable workshop greenhouse outbuildings passage and steps.	Ditto - -	- - -	Joseph Thomas Masters.
3	Dustbin - -	Ditto - -	- - -	Thomas Reesby Joseph Thomas Masters.
13	House and garden.	Frank Fell - -	- - -	John Henry Glenn.
14	Ditto - -	Ditto - -	- - -	John Warren Trindle.
15	Ditto - -	Ditto - -	- - -	Ada Turrall.
16	Ditto - -	Ditto - -	- - -	James Roberts.
17	Yard and passage.	Ditto - -	- - -	John Henry Glenn John Warren Trindle Ada Turrall James Roberts Henry Collett Arthur Burden Alfred Smith Arthur Brown William Hammond.
18	Water closet -	Ditto - -	- - -	John Henry Glenn John Warren Trindle.
19	Ditto - -	Ditto - -	- - -	Ada Turrall James Roberts.
20	Forecourt and steps.	Ditto - -	- - -	John Henry Glenn John Warren Trindle Ada Turrall James Roberts.
21	House - -	Ditto - -	- - -	Henry Collett.
22	Ditto - -	Ditto - -	- - -	Arthur Burden.
23	Water closet washhouse and yard.	Ditto - -	- - -	Henry Collett Arthur Burden.
24	House - -	Ditto - -	- - -	Alfred Smith.
25	Ditto - -	Ditto - -	- - -	Arthur Brown.
26	Ditto - -	Ditto - -	- - -	William Hammond.
27	Water closet washhouse and yard.	Ditto - -	- - -	Alfred Smith Arthur Brown William Hammond.

[5 & 6 GEO. 5.] *Local Government Board's* [Ch. xcii.]
Provisional Orders Confirmation (No. 6) Act, 1915.

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.	A.D. 1915. — Coventry Order.
28	Footpath - -	Frank Fell - -	- - -	John Henry Glenn John Warren Trindle Ada Tur- rall James Roberts Henry Collett Arthur Burden Alfred Smith Ar- thur Brown Wil- liam Hammond.	
48	Passage - -	The Executors of the Will of Jane Frances Sarah Goode deceased viz. William Henry Humphreys John Henry Cox and Alfred John Green Ellen Jane Douglas Henry Conway John Walford Simcox Charles Frederick Arnold John Lea Simcox Josiah Parker George Laxon Ann Newbold the Exe- cutors of the Will of Arthur Lamb Newbold de- ceased viz. Ernest Valentine Newbold Ann Newbold and Ada Garrett George Peters Emma Elizabeth Ireland William Laxon Charles Olorenshaw Herbert Page Johnson.	- - -	William Smith William Henry Gibbons Albert Arnold Henry Ludford Henry Joseph Gilbert James Crofts Thomas Folliard Alfred Pontefract Ann Lovegrove William Ernest Gilbert Joseph Simpkins Harry Webb John Alfred Timbs William Albert Preston James William Phipps Annie Ashley William Cummings Wil- liam Barton Rose Alice Lewis John Seeley Arthur Henry Flowers Thomas Shenstone senior Thomas Shenstone junior Eli Ashby Sidney Stewart Marlow Mary Ann Hitch- cock Clara Thom- son Charles Bir- chall Charles Whiteman Fre- derick Brunt William Thomas Nelson Christo- pher Wood Daniel Joseph Foster Arthur Harbourne Alfred Porter Ellis Peach Jack Boswell William Olorenshaw Edgar Arnold Gardner George Samuel Bonnick.	
50	Ditto - -	Ditto - -	- - -	Ditto.	

[Ch. xcii.] *Local Government Board's* [5 & 6 GEO. 5.]
Provisional Orders Confirmation (No. 6) Act, 1915.

A.D. 1915. — Coventry Order.	Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
	51	Two shops and storerooms.	The Feoffees of Holy Trinity Church Estate viz. Edward Lynes John Bill Joseph Charles Odell Francis James Curtis Henry Welton William James Pickup William Henry Spencer Walter Dickins Arthur Augustus Wincott Walter Winkless Warden Samuel George Wootton Charles Henry Fletcher Sidney Cash Charles Alfred Gray.	Charles Garlick Henry Thomas Garlick William Arthur Garlick.	Elizabeth Stevens.
	52	House - -	Ditto - -	Ditto -	Hannah Collins.
	53	Ditto - -	Ditto - -	Ditto -	Mary Ann Townsend.
	54	Yard and water closet.	Ditto - -	Ditto -	Hannah Collins Mary Ann Townsend.
	55	Cement shed -	Ditto - -	- - -	Charles Garlick Henry Thomas Garlick William Arthur Garlick.
	56	Shed - -	Ditto - -	- - -	Ditto.
	57	Yard - -	Ditto - -	- - -	Charles Garlick Henry Thomas Garlick William Arthur Garlick Henry Cooke.
	58	Blacksmith's shed	Ditto - -	Charles Garlick Henry Thomas Garlick William Arthur Garlick.	Henry Cooke.
	59	House garden and watercloset.	Joseph Judd - -	- - -	Thomas Jackson.

Given under the Seal of Office of the Local Government Board
this Twenty-seventh day of April One thousand nine hundred
and fifteen.

(L.S.)

HERBERT SAMUEL President.

WALTER T. JERRED Assistant Secretary.

URBAN DISTRICT OF LYTHAM.

A.D. 1915.

*Provisional Order for altering the Lytham Improvement
Act 1847 and the Lytham Improvement Act 1904.*

*Lytham
Order.*

To the Urban District Council of Lytham;—

And to all others whom it may concern.

WHEREAS the Urban District Council of Lytham (herein-after referred to as "the Council") are the local authority within the meaning of the Public Health Act 1875 for the Urban District of Lytham (herein-after referred to as "the District") and the unrepealed provisions of the Lytham Improvement Act 1847 as altered by certain Provisional Orders duly confirmed by Parliament which do not affect the subject-matter of this Order and of the Lytham Improvement Act 1904 (each of which Acts is herein-after referred to as the Act of the year in which it was passed and both of which Acts are herein-after together referred to as "the Local Acts") are in force in the District;

10 & 11 Vict.
c. celi.

4 Edw. 7.
c. clv.

And whereas by Sections 7 and 8 of the Act of 1847 the Commissioners for the purposes of that Act (who were the predecessors of the Council) were empowered to keep the beach or ground within the limits of that Act as defined by Section 3 thereof forming a frontage to the houses facing the river or sea in good order and condition and to build sea walls for preventing the encroachment of the sea or tide upon any of the lands within those limits;

And whereas by Section 16 of the Act of 1904 the Council were empowered with the consent of the Local Government Board to acquire or construct hold furnish equip maintain insure and carry on a town hall public hall assembly rooms and other public buildings with all necessary and suitable offices rooms conveniences and appurtenances therein mentioned and for the purposes thereof to acquire by agreement lands and acquire alter adapt or otherwise deal with buildings and by Section 17 of that Act they were further empowered to grant or let with or without charge the use of the whole or any part of any public buildings acquired or constructed by them under the powers of the Act for the purpose of any public or other meetings or any musical or other entertainments or for other purposes approved by the Council on such terms and conditions as they might think fit;

And whereas by Sections 19 and 21 of the Act of 1904 the Council were authorised to make byelaws as to the user of the seashore and with regard to bathing;

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Provisional Orders Confirmation (No. 6) Act, 1915.

A.D. 1915.

*Lytham
Order.*

And whereas by Section 96 of the Act of 1904 the Council were authorised to borrow money for certain purposes particularly mentioned in subsection (1) of that section and with the approval of the Local Government Board such further moneys as the Council might require for any of the other purposes of that Act;

And whereas by Section 115 of the Act of 1904 the provisions with respect to byelaws contained in Sections 182 to 186 of the Public Health Act 1875 so far as they relate to byelaws made by an urban sanitary authority are subject as therein provided applied to all bye-laws made by the Council under the powers of the Act of 1904;

And whereas the provisions of the Public Health Acts Amendment Act 1890 are in force in the District;

And whereas the Council propose to construct a sea wall and marine lake and a bathing pool or open bathing place (herein-after referred to as "the bathing pool") and to purchase the Lytham Assembly Rooms and Baths (herein-after referred to as "the Assembly Rooms and Baths") fronting on the highway known as Central Beach in the District and to maintain alter and extend the same;

And whereas the Council have made application to the Local Government Board for the issue of a Provisional Order to alter or amend the Local Acts in the manner herein-after set forth:

38 & 39 Vict.
c. 55.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Acts shall be altered so that the following provisions shall take effect that is to say:—

Sea wall
marine lake
and bathing
pool.

Art. I.—(1) The Council may by agreement take on lease any part of the seashore beach or foreshore within the District and construct in accordance with such plans and sections as may be approved by the Local Government Board and maintain thereon a sea wall marine lake and bathing pool together with such works appliances and conveniences as may be necessary or proper in connexion therewith and such other buildings as may be approved by the Local Government Board.

Charges for
use of marine
lake and
bathing pool
&c. and
letting of
works &c.

(2) The Council may make such reasonable charges as they may think fit for the admission to and use of the marine lake and bathing pool by this Order authorised to be constructed or any part thereof or any works appliances or conveniences provided in connexion therewith or any other buildings erected with the approval of the Local Government Board and the Council may if they think fit let any such works appliances conveniences or buildings.

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(3) The provisions of subsection (2) of section 44 of the Public Health Acts Amendment Act 1890 shall apply as if the marine lake was a lake or piece of water in a park or pleasure ground provided by the Council.

*Lytham
Order.*

Pleasure boats
on marine lake.
53 & 54 Vict.
c. 59.

(4) The Council may for any of the purposes mentioned in Section 69 of the Town Police Clauses Act 1847 or in Section 21 of the Act of 1904 make byelaws for regulating the use of the bathing pool and the provisions of Section 115 of the Act of 1904 with respect to all byelaws made by the Council under the powers of that Act shall apply to the byelaws so made.

Byelaws for
bathing pool.
10 & 11 Vict.
c. 89.

Art. II. The Council may—

(a) for the purpose of providing a public hall and assembly rooms in pursuance of Section 16 of the Act of 1904 purchase or take on lease the Assembly Rooms and Baths and may maintain alter extend or discontinue sell and dispose of or let the same:

Acquisition
of Lytham
Assembly
Rooms and
Baths:
charges for
admission
to baths:
regulations
as to.

(b) erect construct provide maintain furnish and equip sea water or fresh water swimming medicated Turkish or other baths upon a portion of the site so purchased or taken on lease and may provide lay down take up repair and renew such sea water intake-pipes tanks culverts mains pipes engines boilers pumps machinery apparatus fittings and other works and effects as may be incidental to or necessary for the said purpose:

(c) for the purposes of laying and repairing mains culverts and pipes for supplying sea water to the said baths break up streets and alter the position of any culverts pipes and wires under any street:

Provided that the Council shall not alter the position of or otherwise interfere with any pipe or wire belonging to or used by the Postmaster-General except in accordance with and subject to the provisions of the Telegraph Act 1878:

(d) charge for admission to the public hall assembly rooms and baths acquired or provided as aforesaid and for the use thereof for bathing swimming or other healthful or recreative purposes and make regulations for the management of the same.

Art. III. The purposes of this Order shall be deemed to be purposes of the Act of 1904 for which the Council with the approval of the Local Government Board may borrow money under Section 96 of that Act.

Borrowing
powers.

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Provisional Orders Confirmation (No. 6) Act, 1915.

A.D. 1915.

—
Lytham
Order.

Application
of revenue of
public hall
assembly
rooms
marine lake
bathing pool
and baths
undertaking.

Art. IV.—(1) The Council shall keep the accounts in respect of their public hall assembly rooms marine lake bathing pool and baths undertaking separate from their other accounts distinguishing therein capital from revenue and shall apply the moneys from time to time received by them by way of revenue from such undertaking in each year in the following manner and for the following purposes that is to say :—

First—In payment of the working and establishment expenses of the undertaking and the cost of maintenance of the same :

Secondly—In payment of the interest on moneys borrowed or re-borrowed for the purposes of the undertaking :

Thirdly—In providing for the discharge of the moneys borrowed or re-borrowed for the purposes of the undertaking in accordance with the provisions of the Acts or Orders which are applicable thereto :

Fourthly—In extending and improving (if the Council think fit) any permanent works in connexion with and for the purposes of the undertaking :

Fifthly—In providing a reserve fund (if the Council think fit) by setting aside such money as they think reasonable and investing the same and the resulting income thereof in statutory securities and accumulating the same at compound interest until the reserve fund so formed amounts to the maximum reserve fund for the time being prescribed by the Council not exceeding a sum equal to one-fifth of the aggregate capital expenditure for the time being by the Council upon the undertaking which fund shall be applicable to meet any deficiency at any time happening in the income of the Council from the undertaking or to meet any extraordinary claim or demand at any time arising against the Council in respect of the undertaking or for payment of the cost of renewing any part of the undertaking and so that if the fund at any time be reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens Provided that resort may be had to the reserve fund under the foregoing provisions although such fund may not at the time have reached or may have been reduced below the prescribed maximum :

And the Council shall carry to the district fund of the District so much of any balance remaining in any year of the moneys received by way of revenue from the undertaking (including the interest on the reserve fund when that fund amounts to the prescribed maximum) as may in their opinion not be required for the purposes thereof and for paying the current expenses connected therewith.

[5 & 6 GEO. 5.] *Local Government Board's* [Ch. xcii.]
Provisional Orders Confirmation (No. 6) Act, 1915.

(2) Any deficiency in the revenue of the undertaking shall be forthwith made good out of the district fund and general district rate of the District. A.D. 1915.
Lytham
Order.

(3) For the purposes of this Article the expression "statutory securities" means securities in which trustees are by law for the time being authorised to invest and mortgages bonds debentures debenture stock stock or other securities duly issued by any local authority as defined by Section 34 of the Local Loans Act 1875 but does not include annuity certificates securities payable to bearer or any securities of the Council.

Art. V.--(1) Any of the works authorised to be constructed in pursuance of this Order on over or under tidal lands below high-water mark of ordinary spring tides shall be constructed only in accordance with such plans and sections and subject to such restrictions and regulations as previous to such works being commenced have been approved by the Board of Trade in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade Any alteration or extension of any such works shall be subject to the like approval If any such work be commenced or completed contrary to the provisions of this subdivision the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the cost of the Council and the amount of such cost shall be a debt due from the Council to the Crown and shall be recoverable as a Crown debt or summarily. Works below
high-water
mark to be
subject to
approval of
Board of
Trade.

(2) The Council shall when applying for the approval of the Board of Trade under subdivision (1) of this Article at the same time give notice to the Mayor Aldermen and Burgesses of the Borough of Preston acting by the council (herein-after referred to as "the Preston Corporation") and shall allow the Preston Corporation to inspect the plans and sections of the works proposed and the Board of Trade shall take into consideration any representation made to them by the Preston Corporation if and so far as the works do or may interfere with the works or navigation of the port and harbour of Preston. For pro-
tection of
Preston
Corporation.

Art. VI. Notwithstanding anything in this Order the Council shall not under the powers of this Order borrow any money during the continuance of the present war and twelve months thereafter unless the consent of the Treasury has been previously obtained. Consent of
Treasury to
borrowing
during war.

Art. VII. This Order may be cited as the Lytham Order 1915. Short title.

Given under the Seal of Office of the Local Government Board
this Twenty-sixth day of April One thousand nine hundred
and fifteen.

(L.S.)

HERBERT SAMUEL President.

WALTER T. JERRED Assistant Secretary.

[Ch. xcii.] *Local Government Board's* [5 & 6 GEO. 5.]
Provisional Orders Confirmation (No. 6) Act, 1915.

A.D. 1915.

CITY OF SHEFFIELD.

*Sheffield
Order.*

Provisional Order for altering certain Local Acts.

To the Lord Mayor Aldermen and Citizens of the City of
Sheffield; —

And to all others whom it may concern.

WHEREAS the City of Sheffield (herein-after referred to as "the City") is an Urban Sanitary District of which the Lord Mayor Aldermen and Citizens acting by the Council (herein-after referred to as "the Corporation") are the Urban Sanitary Authority;

And whereas there are in force in the City the unrepealed provisions of the Sheffield Corporation Act 1890 the Sheffield Electric Lighting (Transfer) Act 1898 and the Sheffield Corporation Act 1900 (each of which Acts is herein-after referred to as the Act of the year in which it was passed) as altered by the Sheffield Order (No. 2) 1902 (herein-after referred to as "the Order of 1902") which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 9) Act 1902 and by certain other Provisional Orders duly confirmed by Parliament which do not affect the subject-matter of this Order;

53 & 54 Vict.
c. ccxxv.
61 & 62 Vict.
c. ccxx.
63 & 64 Vict.
c. ccxxii.

2 Edw. 7.
c. lxxxiii.

And whereas by Section 61 of the Act of 1890 it is provided that the Corporation if they think fit may at any time resolve to contribute the whole or a portion of the expenses incurred by them in carrying out the works referred to in that Act as private street works;

55 & 56 Vict.
c. ccxix.

And whereas in pursuance of the Act of 1898 all the powers duties and obligations of the Sheffield Electric Light and Power Company Limited in relation to the supply of energy under the Electric Lighting Acts 1882 and 1888 and the Sheffield Electric Lighting Order 1892 (herein-after referred to as "the Order of 1892") which was confirmed by the Electric Lighting Orders Confirmation (No. 4) Act 1892 were transferred to and vested in and became exerciseable by the Corporation and the Corporation are accordingly carrying on an undertaking (herein-after referred to as "their electric undertaking") for the supply of electrical energy within the City;

And whereas by Section 7 of the Act of 1898 the Corporation are authorised with the sanction of the Local Government Board to borrow such sums as may from time to time be required for the purpose of defraying any capital expenditure incurred for the purposes of or in relation to their electric undertaking;

And whereas by Section 146 of the Act of 1900 as altered by Article II. of the Order of 1902 the Corporation are authorised to provide buildings for use as shops upon any land appropriated and used in pursuance of that section for the purposes of the Housing of the Working Classes Act 1890;

[5 & 6 GEO. 5.] *Local Government Board's* [Ch. xcii.]
Provisional Orders Confirmation (No. 6) Act, 1915.

And whereas by an Instrument dated the Fourteenth day of April A.D. 1915.
 One thousand nine hundred and fifteen issued in pursuance of Article 62
 of the Order of 1892 the Local Government Board approved the use
 by the Corporation for the purposes of that Order of the land vested
 in the Corporation and described in the Schedule to this Order (herein-
 after referred to as "the scheduled land") and the Corporation propose
 to erect thereon offices and other buildings for the purposes of their
 electric undertaking;
*Sheffield
 Order.*

And whereas the Corporation have made application to the Local
 Government Board for the issue of a Provisional Order to alter or
 amend the Act of 1890 and the Act of 1900 as altered by the Order
 of 1902 in the manner herein-after set forth:

Now therefore We the Local Government Board in pursuance of
 the powers given to Us by Section 303 of the Public Health Act 1875 38 & 39 Vict.
 and by any other Statutes in that behalf do hereby order that from c. 55.
 and after the date of the Act of Parliament confirming this Order the
 Act of 1890 and the Act of 1900 as altered by the Order of 1902
 shall be altered so that the following provisions shall have effect that
 is to say:—

Art. I. Section 61 of the Act of 1890 shall be altered by the Contribution
 addition of the following words:— towards cost
 "The Corporation may also if they think fit at any time of private
 " resolve to contribute the whole or a portion of the expenses street works:
 " incurred in the execution of any works of street improvement Amendment
 " under and in pursuance of the provisions of Section 150 of of Section 61
 " the Public Health Act 1875 and may pay the same out of the of Act of
 " district fund or general district rate and the payment of the 1890.
 " amount of such contribution shall be deemed to be a purpose
 " for which the Corporation may with the sanction of the Local
 " Government Board borrow money under and in accordance
 " with the provisions of that Act."

Art. II.—(1) The Corporation may in connexion with the new Authorising
 offices and other buildings to be erected for the purposes of their provision of
 electric undertaking on the scheduled land provide shops with all shops in con-
 necessary accessories and conveniences and the Corporation may letnexion with
 such shops upon such terms and conditions as they may think fit. offices for
 electric
 undertaking.

(2) The provision of shops accessories and conveniences in pur-
 suance of subdivision (1) of this Article shall be deemed to be a
 purpose of or in relation to their electric undertaking for which
 the Corporation may with the sanction of the Local Government Board
 borrow moneys under and in pursuance of Section 7 of the Act of
 1898.

Art. III. Notwithstanding anything in this Order the Corporation Consent of
 shall not under the powers of this Order borrow any money during Treasury to
 borrowing
 during war.

[Ch. xcii.] *Local Government Board's* [5 & 6 GEO. 5.]
Provisional Orders Confirmation (No. 6) Act, 1915.

A.D. 1915. the continuance of the present war and twelve months thereafter unless
Sheffield the consent of the Treasury has been previously obtained.
Order.
Short title. Art. IV. This Order may be cited as the Sheffield Order 1915.

The SCHEDULE above referred to.

All that triangular piece of land in the City containing by
admeasurement 1690 square yards or thereabouts which is bounded
on the north by Pinfold Street on the south-east by Bow Street and
on the west by Holly Street.

Given under the Seal of Office of the Local Government Board
this Twenty-sixth day of April One thousand nine hundred
and fifteen.

(L.S.)

HERBERT SAMUEL President.

WALTER T. JERRED Assistant Secretary.

ROTHWELL JOINT CEMETERY DISTRICT.

Rothwell *Provisional Order to enable the Rothwell Joint Cemetery Board*
Joint *to put in force the Compulsory Clauses of the Lands*
Cemetery *Clauses Acts.*
Order.

To the Rothwell Joint Cemetery Board ;—

And to all others whom it may concern.

WHEREAS the Rothwell Joint Cemetery Board (herein-after referred
to as "the Joint Board") require to purchase and take the lands
described in the schedule hereto for the purposes of a cemetery for
the Rothwell Joint Cemetery District :

38 & 39 Vict. Now therefore We the Local Government Board in pursuance of
c. 55. the powers given to Us by Section 176 of the Public Health Act 1875
42 & 43 Vict. by Section 1 of the Public Health (Interments) Act 1879 and by any
c. 31. other Statutes in that behalf do hereby order that from and after the
date of the Act of Parliament confirming this Order the following
provisions shall have effect that is to say :—

Compulsory
powers of
purchase.

Art. I. The Joint Board shall be empowered to put in force with
reference to the lands described in the schedule hereto and for the
purposes aforesaid the powers of the Lands Clauses Acts with respect
to the purchase and taking of lands otherwise than by agreement or
any of them.

Short title.

Art. II. This Order may be cited as the Rothwell Joint Cemetery
Order 1915.

[5 & 6 GEO. 5.] *Local Government Board's* [Ch. xcii.]
Provisional Orders Confirmation (No. 6) Act, 1915.

The SCHEDULE above referred to.

A.D. 191 .

*Rothwell
Joint
Cemetery
Order.*

Township of ROTHWELL in the County of the WEST RIDING of YORKSHIRE.

No. on deposited Plan.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
1	Field and fences containing 6 acres 696 square yards or thereabouts.	Horace Walter Calverley Thomas Park Wade Thomas Stainer and all others owners and occupiers of property in the Townships of Rothwell-with-Royds Rothwell Haigh Lofthouse-with-Carlton and Oulton - with - Woodlesford Lord Mowbray Segrave and Stourton the Overseers of Rothwell viz. Joseph Hargreaves Corden William Lunn Thomas Park Wade James Armitage John Dobson Benjamin Wood Higgins Thomas Waide James Berry Taylor.	J. and J. Charlesworth Limited.	Joseph Hargreaves Corden William Lunn Thomas Park Wade James Armitage John Dobson Benjamin Wood Higgins Thomas Waide James Berry Taylor.

Given under the Seal of Office of the Local Government Board
this Twenty-seventh day of April One thousand nine hundred
and fifteen.

(I.S.)

HERBERT SAMUEL President.

WALTER T. JERRED Assistant Secretary.

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FREDERICK ATTERBURY, Esq., C.B., the King's Printer of Acts of Parliament.

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